

*The Attorney General* and *Mr. William R. Harr*, Special Assistant to the Attorney General, with whom *The Solicitor General* was on the brief, for defendant in error:

The writ of error should be dismissed for want of jurisdiction. There is not now and never has been, properly speaking, a constitutional question involved in this case.

The mere assertion of a constitutional privilege, without color of ground to support it, is not sufficient to confer jurisdiction on this court to review the judgment of the Circuit Court. *Lampasas v. Bell*, 180 U. S. 282. See also *Water Co. v. Newburyport*, 193 U. S. 561, 576; *Railroad Co. v. Castro*, 204 U. S. 453, 455; *Kent v. Porto Rico*, *ante*, p. 113.

Even if the offense is not included within the exception to the privilege, and the imposition of sentence would amount to an arrest, color for the assertion of such privilege exists only when a Senator or Representative is threatened with arrest while in attendance at the session of their respective Houses or in going to and returning from the same. The contention that the privilege extends to freedom from arrest two months before Congress will meet, is frivolous, and could have been made for jurisdictional purposes only.

Sentence is not an arrest. At most it is but an order for arrest, although generally followed in this country by a warrant of commitment. *Bishop's New Crim. Pro.*, 4th ed., § 1337. An unexecuted order for arrest is not in itself an arrest, and in this case the sentence, even treating it as such an order, was suspended during the entire time that plaintiff in error was a member of Congress.

The privilege of immunity extends to civil arrests only, and does not apply to any indictable offense. 1 *Hartsell's Precedents of Proceedings in House of Commons*, 2, 40, 65, 66; *Wilkinson v. Boulton*, 1 *Levinz*, 163; *Mr. Long Wellesley's Case*, 2 *Rus. & Myl.* 639, 664, 665; *Rawlins v. Ellis*, 10 *Jurist*, pt. 1, p. 1039; *Bowyer's Com. on Const. Law of Eng.*, 2d ed., p. 84; *May's Law of Parliament*, 145.

Actual personal violence is not an essential element of breach